



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA FACSIMILE

{{insurance2.insurer.name}}

Attn: {{insurance2.umuimadjuster.name}}

{{insurance2.umuimadjuster.address1line1}} {{insurance2.umuimadjuster.address1line2}}

{{insurance2.umuimadjuster.address1city}}, {{insurance2.umuimadjuster.address1state}}

{{insurance2.umuimadjuster.address1zip}}

F: {{insurance2.umuimadjuster.fax1}}

E: {{insurance2.umuimadjuster.email1}}

Re:	Our Client:	{{fullname}}
	Your Insured:	{{fullname}}
	Claim No.:	{{insurance2.claimnumber}}
	Date of Loss:	{{ incidentDate longDate }}

Dear Mr./Ms. {{insurance2.umuimadjuster.lastname}},

As you aware, {{FIRM_NAME}} represents Mr./Ms. {{fullname}} with regards to the injuries and damages that he/she sustained as a result of the above-referenced incident which occurred on or about {{ incidentDate | longDate }} in the state of Washington

I communicated your offer of [\$amount] to my client. While we appreciate you extending an offer, we must respectfully reject it.

Mr./Ms. {{lastname}} is not happy about the low limit that the under-insured defendant driver carried [\$amount]. The UIM carrier must independently evaluate the value of this case and offer the policy limits regardless of whether the third party carrier tenders as they should if they act in good faith to protect their insured. As such, {{insurance2.insurer.name}} should tender their policy limits now.

Mr./Ms. {{lastname}} understands that the [\$amount] of Underinsured Motorist Coverage is there to compensate him/her in the event of a significant accident with significant injuries that he/she suffered as an underinsured motorist. He/She purchased this coverage to protect him/her in the event of an accident due to the carelessness of another driver who fails to purchase sufficient insurance to cover the injuries caused. He/She is in that situation now.

Liability is clear against the underinsured driver who failed to use due care while driving and struck Mr./Ms. {{lastname}}'s vehicle. The underinsured crashed into Mr./Ms. {{lastname}}'s vehicle causing him/her to suffer serious injuries. Our client is understandably upset at this whole ordeal and would like to put this behind him/her and move on with his/her life. Although your policy limit is woefully inadequate, he/she is willing to accept it at this time in full settlement of his/her case against your company.

As you are aware he/she sustained the following injuries:

- Evidence of Lumbar Strain



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- Bone contusion S1 vertebral body
- Disc bulge L3-4 (2mm)
- Disc Bulge L4-5 (2 mm)
- Disc protrusion T12-L1 (2-3 mm)
- Disc protrusion L2-3 (4-5 mm)
- Disc protrusion L5-S1 (4-5 mm)
- Evidence for Cervical Strain
- Disc protrusion C3-4 (3-4 mm)
- Disc protrusion C4-5 (4 mm)

Mr./Ms. {{lastname}} was recommended Bilateral Lumbar Transforaminal Epidural Steroid Injections at L3-4 with an estimate cost of \$18,571.69. On 10/25/17, the procedure was performed by Dr. Ruben G Alexander.

Your policy limit is woefully inadequate in light of the comparable verdicts and settlements for similar injuries our client sustained. Here are examples of other verdicts:

1. **Austin vs. Contrast Lighting Services Inc- Verdict - \$650,000.00** - MRI of the cervical spine showed C5-C6 central disc bulge **resulting from a car wreck.**
2. **Toney vs. Magana- Verdict - \$500,000.00** a lumbar MRI was most significant for the disc bulge at C4-C5 which was the basis for the verdict.

We demand your Underinsured Motorist Policy Limit (or your stacked limits if applicable), whichever is greater which our client has expressly authorized me to accept within the next Seven days. You have until 7 days from the date of this letter to accept our offer.

Should {{insurance2.insurer.name}} not accept our offer to settle for the policy limit, within 7 days from the date of this letter, the offer to accept the limit is automatically revoked. Our office litigator, Timothy Ray, will file suit against your company and proceed to obtain a jury verdict as indicated and we will seek to hold {{insurance2.insurer.name}} responsible for the full measure of our client's damages and losses.

Very Truly Yours,

Andrew Stikovic

{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}

AS/ [REDACTED]